

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN CAMBODIA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Cambodia, grounded in the Environment and Natural Resources Code and the EIA system, the Ministry of Environment, the 2001 Land Law and its possession and communal-title rights, and the international lenders whose safeguards have repeatedly delivered where domestic routes could not

This guide uses the Cambodian legal terms you will actually encounter (the 2023 Environment and Natural Resources Code and the EIA Sub-Decree, the Ministry of Environment and the project approval institution, the EIA and IEIA reports, the "special/crucial project" exemption, the 2001 Land Law and legal possession, economic land concessions, communal and indigenous land title, and expropriation and compensation), each explained in plain language where it first comes up.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Where a term is Cambodian, the everyday word is used alongside it.

A note on land, which decides most cases. Many Cambodian development fights are land fights. Under the **2001 Land Law**, people who peacefully and openly possessed land before the law took effect can have **legal possession** — a real, protectable right — and indigenous communities can hold **communal title**. But vast areas were leased to companies as **economic land concessions**, titling was denied to whole communities, and eviction has often gone ahead regardless. Understanding whether your community has **legal possession or communal title**, and whether the land was reclassified to strip it, is frequently the whole game.

A note on realism, up front. Cambodia's environmental law was modernised in 2023, and the Land Law contains genuine rights. But the Ministry of Environment is a relatively weak reviewer, big projects can be exempted as "special" by the government, civic space is constrained, and the courts are not independent in politically sensitive matters. This guide treats those facts as the terrain and steers you toward the levers that still work — above all the assessment, the possession and communal-title rights, and the international lenders.

A note on safety. In Cambodia, opposing a powerful project — especially one tied to a concession or a well-connected company — can carry real personal risk, including criminal charges against organisers. Nothing here is worth harm to you. Prefer the documentary, legal and lender routes over anything that exposes named individuals, and read Section 13 before acting where a project is politically connected.

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INTRODUCTION & FRAMEWORK

Why This Matters

Cambodia has been transformed by development — hydropower dams on the Mekong and its tributaries, vast **economic land concessions** for rubber, sugar and other agribusiness, sand dredging, special economic zones and industrial parks, mines, and eviction-heavy urban growth in Phnom Penh and Sihanoukville. Much has fallen hardest on those least able to resist: smallholder farmers whose possession was never titled, indigenous communities whose ancestral land was leased out from under them, fishing and riverbank communities displaced by dams and dredging, and city residents evicted when their neighbourhoods were reclassified and handed to developers. When people ask whether anything can be done, the honest answer is: **sometimes — but only if you use the specific machinery the law provides, and understand where that machinery stops.**

That machinery exists, and it was recently modernised. In 2023 Cambodia promulgated a new **Environment and Natural Resources Code** (by Royal Kram, in force from mid-2023), consolidating the country's environmental law, and the Ministry of Environment has since issued new instruments — including 2025 rules expanding which projects require assessment and how they are monitored. Alongside the Code, the older **EIA Sub-Decree (Sub-Decree 72 of 1999)** still operates in part: it requires that an **Environmental Impact Assessment (EIA)** — or, for smaller projects, an **Initial Environmental Impact Assessment (IEIA)** — be prepared and **reviewed by the Ministry of Environment before the project is approved**, for a wide list of project types (agro-industry, mining, power plants, infrastructure, tourism and more), and it calls for **public participation**. That pre-approval assessment is the single most important lever in this guide: it is a real gate, and the moment before a project passes through it is the moment your community has the most power.

Your other great source of leverage is **land law**. Under the **2001 Land Law**, a person in **peaceful, uncontested possession** of land before the law came into force can hold **legal possession** — a protectable, titleable right — and **indigenous communities** can obtain **communal land title** to ancestral land. These rights are real, and the basis of important victories. Where a project takes land, expropriation must be for a genuine **public interest** with **fair and just compensation in advance**. And where a project is financed by an international lender such as the **World Bank** or the **Asian Development Bank**, the lender's **safeguards** and its **independent complaints mechanism** have repeatedly delivered scrutiny and remedy domestic routes could not, as the Boeung Kak Lake case showed.

The honest counterweight, stated plainly. The tilt here is severe. The Ministry of Environment is a **relatively weak reviewer** — historically able only to give "findings and recommendations" the approving ministry need merely "consider" — and the EIA framework **exempts "special" or "crucial" projects approved by the Royal Government**, which can remove the biggest projects from the process. Enforcement is uneven and EIAs are sometimes done late, or not made public. **Economic land concessions** handed enormous areas to companies, often over land people lawfully possessed, and **titling was denied to whole communities** so their land could be reclassified and leased. Civic space is constrained, protest can bring **criminal charges against organisers**, and the courts are not independent in politically sensitive matters. None of this makes opposition pointless — but it means the **assessment, the possession and communal-title rights, and the international lenders** matter far more than street mobilisation, and that the realistic goal is often a better outcome rather than a stopped project.

What "winning" realistically means. Rarely the outright cancellation of a flagship or connected project. More often: **legal possession or communal title recognised**, which transforms a community's position; **higher, properly-paid compensation** and genuine **resettlement** instead of bare eviction; a project **redesigned** to reduce harm; an assessment **redone** after being exposed as inadequate or absent; **conditions, mitigation and monitoring** imposed; a project **delayed** while the assessment or land claim is contested; a **concession reduced or cancelled** where granted unlawfully over possessed or communal land; and — often most powerfully — **binding action through an international lender's safeguards** where the project is financed.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish the developer, the approval institution, the concession, and the land status.
2. **Documentation** — build a land, assessment and compensation record strong enough for the authorities, the courts and any lender.
3. **Local opposition** — organise carefully and lawfully, around those with possession and communal-title claims.
4. **Legal challenges** — the assessment, the land rights, and the lenders.
5. **Media strategy** — coverage that raises the cost of a visibly unlawful or damaging project.

No single step wins alone. Here the combination that works is **a land-and-assessment challenge, built on possession or communal title and carried — where the project is financed — into an international lender's complaints mechanism.**

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Cambodia's system is tilted toward development, concessions and connected interests, and organising is constrained. Assessing that honestly is what lets you pick the right tools: the strongest routes here are **the EIA requirement, legal possession and communal title under the 2001 Land Law, advance and fair compensation, and an international lender's safeguards**. A tilt changes which lever works; it rarely removes them all. Section 13 is candid about what this system cannot do — especially against "special" projects and politically-connected concessions.

How to use this guide

Read Sections 1–3 once, and Section 4 immediately — identifying the developer, the concession and the land status determines everything else. Sections 5–7 run in parallel. Sections 9–11 are reference material. Section 12 puts it on one timeline; Section 13 tells you honestly what this system cannot do, and how to stay safe.

HOW THE SYSTEM WORKS

Before you can fight a project you must know who decides it, how, and the words the system uses. In Cambodia, environmental and land decisions run through the Ministry of Environment, an approval institution, and the land administration — and the most powerful external check is often not domestic at all, but an international lender. Learn these actors and you know where to push.

The Bodies That Decide — And What Each One Controls

The Ministry of Environment (MoE). The environmental regulator, which reviews the **EIA and IEIA reports**, monitors the **Environmental Management Plan**, and administers the Environment Code. Understand its real weight honestly: historically the MoE could only review the assessment and give "**findings and recommendations**" the approving institution need only "**consider**". It is nonetheless where the technical argument is made, and its review is a required step.

The project approval institution. The ministry or authority that actually **approves the project** and issues the licence — often the sector ministry (energy, mines, agriculture, industry) or an investment body. Its decision matters most, and it must have the EIA before approving. Identify it early: it is your formal counterparty.

The Royal Government / Council of Ministers. For the largest and most sensitive projects, approval sits at the highest level — and this is where the "**special/crucial project**" exemption can be invoked to take a project outside the ordinary EIA process. Knowing whether your project is treated as "special" is essential.

The land administration. The **Ministry of Land Management, Urban Planning and Construction** and its cadastral offices administer the **2001 Land Law**, run **systematic land titling**, and register **legal possession** and **communal title** — the provincial and district offices, and commune authorities, are where land status is recorded and disputed.

The cadastral commissions and courts. Land disputes are heard by **cadastral commissions** (district, provincial and national) and by the **courts**. The commissions are the ordinary route for a possession dispute; the courts hear property and eviction cases but are constrained in politically sensitive matters.

The concession-granting bodies. **Economic land concessions** and others (mining, hydropower, sand) are granted by the relevant ministries and, for the largest, the government. A concession's lawfulness — its size, process, and whether it overlaps possessed or communal land — is a central battleground.

International lenders and their accountability mechanisms. Where a project is financed by the **World Bank**, the **Asian Development Bank**, or another institution, the lender's **safeguards** apply and its **independent complaints or inspection mechanism** can investigate. This is often the single most powerful and safest external route — the Boeung Kak Lake complaint to the World Bank Inspection Panel is the landmark example.

Human-rights bodies and the UN presence. Cambodia has national human-rights structures and a notable international and UN presence; complaints and documentation to these can create a record and attention, within limits.

Which one is "yours"? Ask: which body **approves** the project? Is there an **EIA**, and has the MoE reviewed it? Is the project being treated as "**special**" and exempted? Is there a **concession**, and over what land? What is the **land status** —

legal possession, communal title, or state land? And is there an **international lender**? Pinning this down is Step 1.

How a Decision Is Actually Made — The Journey of a Project

Under the Environment Code, the EIA Sub-Decree and the Land Law the path is roughly:

1. **The assessment requirement.** A project of a type listed in the EIA annex must have an **EIA (or IEIA)** prepared and **submitted to the MoE and the approval institution before approval**. The 2025 rules expanded and clarified which projects are covered.
2. **MoE review.** The MoE **reviews** the assessment and issues **findings and recommendations**. Historically, if it does not respond within the set period the approval institution may proceed, and it need only "consider" the findings — a real weakness to exploit where the review was skipped or ignored.
3. **Public participation.** The framework calls for **public participation** in the EIA, and the community's concerns are to be considered in decision-making. In practice this is often thin or absent — itself a ground of objection.
4. **The management plan.** An approved EIA contains an **Environmental Management Plan** of mitigation and monitoring, which the proponent must implement and the MoE monitors; failure can, in principle, halt the activity.
5. **Approval and licence.** The approval institution decides. For "special/crucial" projects, the Royal Government may approve outside the ordinary process.
6. **Land, concession and compensation.** Land taken must be for a genuine **public interest**, with **fair and just compensation paid in advance**; a **concession** must comply with the Land Law's limits and process. Overlap with **legal possession** or **communal title** is unlawful.
7. **Monitoring and enforcement.** New monitoring-report rules require ongoing reporting; non-compliance is a continuing, documentable ground.

The Rulebook — The Provisions That Decide the Outcome

- **The Environment and Natural Resources Code (2023)** — the consolidated environmental law, EIA, public participation, and monitoring, with 2025 implementing rules.
- **The EIA Sub-Decree (Sub-Decree 72, 1999)** — the still-operative EIA process: mandatory pre-approval assessment, MoE review, the management plan — and the "**special project**" exemption.
- **The 2001 Land Law** — **legal possession** (for pre-2001 peaceful possessors), **communal/indigenous title**, state public vs state private land, and the framework for **economic land concessions**.
- **The Expropriation Law** — public-interest requirement and **fair and just compensation in advance**.
- **The sub-decrees on economic land concessions and on indigenous communal land registration** — the limits, size caps and process for concessions and communal titling.
- **The lender's safeguards**, where a project is financed — often the strongest external standard, especially on resettlement.

Follow the Money — Why the System Often Leans Toward "Yes"

Understanding the pressures is targeting, not cynicism. Development is a national priority tied to investment, energy and agribusiness, and land is a principal source of wealth and patronage. **Concessions** put vast areas in company hands cheaply, the MoE is weak against powerful line ministries and connected developers, assessments are paid for by the proponent, and the largest projects can be declared "special". None of this is unlawful in itself, but it explains why the **assessment, the land rights and any lender** are the levers that actually bite — and why arguments framed in **law and land**, not politics, travel furthest.

The Overseers — Who Watches the Decision-Makers

- **The MoE** — assessment review and monitoring, within its real limits.
- **The cadastral commissions and courts** — land and possession disputes, and compensation.
- **International lenders and their accountability mechanisms** — often the strongest and safest external check, especially on land and resettlement.
- **National human-rights structures and the international/UN presence** — record and attention, within limits.
- **The land-registration system** — where legal possession and communal title, once secured, become durable protection.

Naming and using the right body matters. Here the most consequential early judgment is usually **the land status, whether a concession overlaps it, and whether an international lender is involved**.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns from how Cambodian and comparable campaigns tend to go, not a controlled study. Use them to prioritise effort. The decisive variables are not in the table: **the land status, whether the project is "special", and whether an international lender is involved**. Against a financed project over land people lawfully possess, the levers below work well. Against a "special" or politically-connected project on state land, discount every figure and read Section 13 first.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Public opposition only	5-15%	3-18 months	low	Attention; limited alone, and risk-bearing
Objection during the EIA	20-40%	during review	low	On record; conditions or a redo
Legal possession / communal title claim	25-50%	6-36 months	low-moderate	Land recognised; a transformed position
No-EIA / defective-EIA challenge	20-40%	1-6 months	low	Approval exposed; project paused
Compensation / resettlement claim	20-40%	3-18 months	low	Higher compensation; resettlement honoured
Court / cadastral commission case	15-35%	12-48 months	moderate	Possession upheld; eviction checked
International lender complaint (if financed)	30-55%	3-24 months	low	Independent review; remedy; leverage
Concession-legality challenge	15-35%	6-36 months	low-moderate	Concession reduced or cancelled
All steps combined (financed / clear possession)	40-55%	12-36 months	low-moderate	Land recognised, redesigned, compensated, delayed, or stopped
All steps combined ("special"/connected project)	10-25%	12-48 months	low-moderate	Better compensation, resettlement, mitigation, delay

Key insight: all steps together beat any single one — but the ceiling depends decisively on the land status, the "special" question, and any lender. The system's real strengths are the **EIA requirement, legal possession and communal title, advance and fair compensation**, and above all a **financing lender's safeguards and complaints mechanism**. Its real constraints are a **weak reviewer**, the **"special project" exemption, concessions granted over possessed land**, a **constrained civic space**, and **non-independent courts**. Where a project is internationally financed, the lender route can outperform every domestic option.

A note on cost: objecting, documenting possession and complaining are inexpensive. The expenditure that changes outcomes is a lawyer or paralegal experienced in land cases and, where possible, help preparing a lender complaint. Both are worth prioritising, and both are often available through legal-aid organisations.

Effectiveness Visualization

SUCCESS PROBABILITY (land recognised, redesigned, compensated, resettled, delayed -- or, for clear cases, stopped)

FINANCED PROJECT or CLEAR LEGAL POSSESSION, credible file, legal-aid support, some external attention:

All steps combined:	40-55%
Lender complaint:	30-55%
Possession / communal:	25-50%
Single step:	5-50%

"SPECIAL" or POLITICALLY-CONNECTED PROJECT on state land, constrained

civic space:	
All steps combined:	10-25%
Lender complaint (if any):	10-30%
Compensation / resettlement:	10-25%
Single step:	2-15%

How to read this honestly. The arguments that move outcomes here are **land-based, legal and lender-based, never political**. The strongest: **legal possession** under the 2001 Land Law pre-dating a concession; **communal/indigenous title** over ancestral land leased out unlawfully; a project **approved without a required EIA**, or on a defective or secret one; **public participation** that was absent; **compensation** below standard or not paid in advance; a **concession** breaching the size caps or process, or overlapping possessed land; and a financed project **breaching a lender's safeguards**, especially on resettlement. What will not work is framing the fight as opposition to the government. Keep every argument inside the language of the Land Law, the Environment Code and any lender's standards, and success becomes measurable in **land recognition, compensation, resettlement, conditions and delay**.

Step Importance Ranking (When All Combined)

1. **Land rights and legal challenges** — possession, communal title, the EIA, and the courts/commissions.
2. **The international lender route** — often decisive, and safest, where the project is financed.
3. **Documentation** — because only a rigorous land-and-assessment record survives a dispute.
4. **The EIA and public-participation arguments** — high-value and reliably winnable.
5. **Media and human-rights complaints** — which raise the cost of a visibly unlawful project, used carefully.

Winning Cambodian campaigns combined a possession or communal-title claim, an EIA objection, standing through land rights, and — where available — an international lender's complaints mechanism, kept lawful and documentary.

What Cambodian Campaigns Actually Show

A few patterns recur. **Land status is the foundation**. The strongest cases rest on **legal possession** pre-dating a concession, or **communal/indigenous title** over ancestral land — rights the Land Law genuinely protects, and the basis of the most significant victories. **The lender route is uniquely powerful** — where the World Bank, the ADB or another institution finances a project, its safeguards and complaints mechanism have delivered review, resettlement and remedy no domestic route achieved (Boeung Kak Lake and the World Bank Inspection Panel being the landmark). **The EIA is a real but weak gate** — a required assessment skipped, defective, secret, or done after approval is a genuine ground, even though the MoE is weak and "special" projects can be exempted. **Concessions are vulnerable** where they exceed the caps, breach process, or overlap possessed or communal land. **Compensation and resettlement are contestable** — advance, fair compensation and genuine resettlement are often unmet. **And the "special" question sets the ceiling** — an exempted or connected project is usually, at best, mitigated or delayed; a financed project over clearly possessed land can be reshaped or stopped. The through-line: **establish the land status, use the assessment and any lender, and calibrate the goal to whether the project is "special"**.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions and write the answers in a shared document — this becomes the campaign's factual spine, and the beginning of a file that could sit before a cadastral commission, a court, or an international lender.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get specific: exact location and extent, project type and stage, and what is there now — farmland and homes held under

possession or communal title; indigenous ancestral land, forests and sacred sites; rivers, fisheries and flooded-forest systems; the Mekong, the Tonle Sap and the communities that depend on them; protected areas; and urban neighbourhoods facing eviction. Establish who holds and uses each parcel, and under what land status. Obtain the EIA if you can, and list every impact it admits, with the page reference.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the **developer** — and whether it is a private company, a concessionaire, a state body, or politically connected; (b) the **approval institution** and whether the **MoE** has reviewed an EIA; (c) whether the project is being treated as "**special**" and exempted; (d) whether there is a **concession**, and over what land; and (e) whether an **international lender** is financing it — which opens the safeguards route.

Question 3: What Specific Action Stops It?

Realistic outcomes include: **legal possession or communal title recognised**, transforming the community's position; the project **blocked or paused** for lack of a lawful EIA; **compensation increased** and resettlement secured; a **concession reduced or cancelled** where it overlaps possessed or communal land; an **international lender review** forcing remedy; the assessment **redone**; **conditions and monitoring** imposed; or, for a clearly unlawful project, a **stop**. Map them and pursue at least two.

Question 4: When Is the Decision Final?

Diarrise the deadlines. The **EIA and approval** stage is the key window — once approval issues, you are contesting rather than objecting. **Land titling and possession claims** have their own (often slow) processes. **Eviction notices** carry short periods. A **lender complaint** is often possible at any stage but is strongest early. And **court and cadastral-commission** cases have their own timetables. **See a lawyer or a legal-aid organisation about deadlines the moment a concession, EIA, compensation offer or eviction notice appears.**

Question 5: Are There Documented Financial or State Interests?

Map, carefully: who profits and who is behind the project; whether a **concession** was granted, to whom, and over what land; whether the developer is **politically connected**, which changes your strategy and risk; whether an **international lender** is funding it; and what officials have said. Use public sources — the gazette, MoE and land records, concession open-data (Cambodia has notable such resources), lender disclosure, company filings — and build a dated timeline. Where the interests are connected or state-linked, be cautious about what you publish and about naming individuals.

Output of Step 1: a one-page fact sheet with the project's description and location, the developer and its nature, the approval institution and EIA status, any concession and the land status, whether it is "special", any lender, and every deadline.

Worked example: which lever is actually open

Suppose an agribusiness holds an **economic land concession** over an area including land your community has farmed since before 2001, and clearing is beginning. Working the questions: **Q1** — you record each family's possession, the homes and improvements, the forest and any sacred sites. **Q2** — the developer is a **concessionaire**; you check whether an **EIA** was done and reviewed, and whether the project is being treated as "special". **Q3** — the decisive facts are two: does your community have **legal possession** (peaceful, uncontested, pre-2001) or **communal title** that pre-dates and overlaps the concession, and was the **concession lawfully granted** within the size caps and process? If so, the concession is unlawful to that extent, and the live arguments become possession, the overlap, and any missing EIA. **Q4** — you find the concession and EIA status and any eviction notice, and get legal-aid help on deadlines immediately. **Q5** — you check for an **international lender** anywhere in the finance, because that opens a safeguards complaint. Within an afternoon you know that **possession or communal title and the concession's legality are the campaign, and a lender — if any — is your strongest external ally.**

STEP 2: DOCUMENTATION

Documentation matters more in Cambodia than almost anywhere. Your ultimate audience is often a **cadastral commission, a court, or an international lender's investigators**, who decide on record — especially land status — not sentiment; and because organising openly can carry risk, a strong **paper case** is both safer and more effective than a large public campaign. A precise, referenced file — above all proving **possession or communal title** — is your best

weapon and your best protection.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project, from sources you can stand behind.

Possession and title — the heart of the file. For each affected household, document **how long and how peacefully they have possessed the land** (pre-2001 possession is the strongest), and any titles, receipts, tax or residence records, elder testimony, and old maps or photographs showing occupation. For indigenous communities, document the **ancestral use and boundaries** supporting **communal title**. This is the single most decisive body of evidence in most Cambodian cases.

Improvements and livelihoods. Document homes, crops, orchards, wells and other improvements; farming, fishing, forest use and grazing; and the flooded-forest, river and fishery systems people depend on.

Environment. Document rivers, fisheries, forests, wetlands and habitat at risk; downstream and Mekong/Tonle Sap impacts; and any protected area or species — cite measurements and studies, not assertion.

Sacred and cultural ground. Document spirit forests, burial grounds and cultural sites, especially for indigenous communities; these carry weight and are within the assessment's scope.

How to hold it. Keep a referenced file with dates, sources and geolocated photographs where safe. Everything you assert should be traceable to a document, a record, or a named person's possession. Assume the file may be read by a commission, a court, a lender and your opponents.

LAYER 2: PROJECT AND PROCESS ANALYSIS

Show whether the project is lawful and whether the assessment and concession are sound. Catalogue four things:

1. **The EIA, and whether it exists and is valid.** Establish whether a required **EIA** was prepared, **reviewed by the MoE**, and completed **before approval** — not after, in secret, or not at all. A missing, late, secret or defective EIA is a genuine ground.
2. **The concession's legality.** Test any **concession** against the Land Law: is it within the **size caps**, was the **process** followed, and does it **overlap legal possession or communal title**? An overlap with lawful possession is unlawful and often the strongest point.
3. **Public participation.** The framework calls for **public participation** in the EIA. Was it done, was it genuine, and were concerns considered? Absent or token participation is a clean defect.
4. **Compensation, resettlement and eviction.** Was land taken for a genuine **public interest**, with **fair compensation paid in advance** and genuine **resettlement**? Was any eviction lawful, with due process and notice? Each is a potential ground.

Get expert eyes on it. Two kinds of help matter: a **land lawyer or paralegal** who can assess possession and concession legality, and, where needed, a **technical expert** (hydrologist, fisheries or forest scientist) on the environmental impacts. A short, signed critique is worth more than any amount of general objection. Where a lender is involved, its safeguards give you a second checklist — especially on **involuntary resettlement and indigenous peoples**.

LAYER 3: HUMAN AND INSTITUTIONAL IMPACT DOCUMENTATION

Record the human stakes — carefully, and with consent. Document, where people are willing: possession and livelihoods lost; homes and improvements destroyed; communities displaced and where they end up; fisheries and food security affected; indigenous cultural loss; and health effects. Two cautions specific to Cambodia: **obtain genuine consent before recording anyone's testimony or image**, because exposure can bring charges or reprisals against organisers; and **frame harm in land-and-legal terms** — unlawful concession, denied possession, missing EIA, inadequate compensation, breach of lender safeguards — rather than as political grievance, because that is what commissions, courts and lenders act on, and it is safer.

Package this layer twice: a **rigorous legal-and-land version** for the authorities, the courts, the commissions and any lender, and a **short public version** for careful, lawful media use.

How to Structure Your Documentation

- **Phase 1: Baseline (Weeks 1-4)** — possession and title, improvements, environment and sacred ground.
- **Phase 2: The project file (Weeks 2-6)** — EIA status, concession legality, compensation and resettlement.
- **Phase 3: Expert help (Months 2-3)** — the land-legal assessment, technical critique, and the lender-safeguards checklist.
- **Phase 4: Follow-through (ongoing)** — monitoring, compensation, the titling process, and the court/commission timeline.

Common Documentation Pitfalls (What Fails)

- **Framing it politically** — commissions, courts and lenders act on law and land; political framing also raises personal risk.
- **Under-documenting possession** — pre-2001 possession you fail to prove is protection you lose.
- **Missing the deadlines** — the EIA/approval stage and eviction notices are short.
- **Recording people without consent** — a safety failure as much as a documentation one.
- **Assertion without source** — one unsupported claim can sink a land file.
- **Ignoring the lender** — where a project is financed, its safeguards are among your strongest tools.

Documentation Budget Breakdown

Item	Low (volunteer/community)	Higher (with counsel)
Possession & title evidence	community/volunteer	modest
EIA & concession records	minimal	modest
Land lawyer / paralegal	often via legal aid	moderate
Mapping & geolocated photos	volunteer	moderate
Lender complaint preparation	often via NGO	moderate
Technical critique	sometimes free	moderate

Most of this is inexpensive, and much is available through **legal-aid and land-rights organisations**. Concentrate effort on proving **possession/communal title** and, where financed, preparing a **lender complaint**.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what decides a Cambodian case is a document — a possession record, a concession contract, an EIA — and knowing which ones, and how to ask, is half the battle.

Possession and title evidence. Any titles, cadastral records, tax receipts, residence or family records, commune confirmations, elder testimony, old maps and photographs proving **pre-2001 peaceful possession** or **communal use** — the foundation.

The EIA and MoE review. The assessment, the **Environmental Management Plan**, and the MoE's findings. Request them from the **MoE** and the approval institution; where a lender is involved, the EIA is often **published by the bank**.

The concession contract and data. The agreement, its size, boundaries and terms. Cambodia has notable **open-data resources on concessions** — often the easiest way to map a concession's overlap with your land.

The approval. The project approval, and whether it was treated as "special".

Expropriation and eviction papers. The stated public interest, the notice, the compensation offer, and the resettlement plan (or its absence).

Lender disclosure. Where an international bank finances the project, its **project page** publishes the environmental and social assessment, the **resettlement plan**, and its **independent complaints mechanism** — a rich, reliable, safe source, especially strong on land and resettlement.

How to force a document open. Cambodia lacks a strong general access-to-information regime in practice, so use the routes that exist: a **formal request** to the MoE, the land administration and the approval institution; **civil-society open-**

data on concessions; **lender disclosure**, often the most productive; the **cadastral commission** process, which surfaces land records; and, once litigation begins, **disclosure through the court**. Keep proof of every request.

Free and low-cost help. Cambodia has experienced **land-rights and legal-aid organisations**, community networks and open-data initiatives, plus — for financed projects — the lender's accountability office. **Where an experienced land lawyer or legal-aid organisation will take the case, that is the single highest-value step.**

Tie it to the map. The projects and units shown here are your starting index: a mapped project or concession points you to the approval institution and the assessment that governs it, and from there to the documents that decide the case.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Organising in Cambodia requires real care. Civic space is constrained, protest can bring **criminal charges against organisers**, and land activists have faced arrest and worse. This does not mean you cannot organise: it means the safest and most effective organising is **quiet, lawful, documentary, and built around the people with possession and communal-title claims**, through experienced legal-aid and land-rights organisations rather than loud confrontation.

Three principles carry special weight. **Land and law over confrontation:** every action framed as a lawful assertion of possession, communal title, the EIA and — where financed — the lender's safeguards is both more effective before commissions, courts and lenders and far safer than political protest. **Organise around land rights:** the people with **legal possession or communal title** are both the moral centre and the legal basis of the case; a tight group of affected possessors with a paralegal is worth more than a large, exposed crowd. **Protect people:** never expose named individuals unnecessarily, always obtain consent before recording anyone, work through established organisations that understand the risks, and treat safety as the first constraint.

PHASE 1: FOUNDATION (Weeks 1-4)

Step 1a: Establish the facts, quietly. Identify the developer, the concession, the approval institution, the EIA status, and — decisively — the **land status**. Begin the **possession-and-title evidence file**, and request the EIA and concession records, including through any lender.

Step 1b: Bring together the possessors. The strongest opposition is the group of **affected possessors and the indigenous community** — those whose legal possession or communal title is at stake. Their direct interest gives them standing before commissions and courts.

Step 1c: Reach a land-rights organisation early. The decisive early move is connecting with an experienced **legal-aid or land-rights organisation** and, ideally, a **paralegal or lawyer** who can assess possession and concession legality — they shape everything that follows and provide protection.

PHASE 2: PUBLIC LAUNCH (Weeks 4-12)

Note that "public" here means **entering the formal process**, not necessarily a demonstration — which can bring charges.

Step 2a: Object during the EIA. File a specific objection with the MoE and the approval institution — missing or defective EIA, absent participation, the impacts — and keep proof (Section 8B).

Step 2b: Assert possession and communal title. Lodge the **possession claim or communal-title application** and, where a concession overlaps, raise the overlap formally (Section 8C).

Step 2c: Challenge the concession or the missing EIA. Where the concession breaches the size caps, process, or overlaps possessed land, or where no lawful EIA exists, raise it in writing with the relevant ministry (Section 8D).

Step 2d: Open the lender channel, if any. For a financed project, file with the bank's **independent complaints or inspection mechanism** (Section 8E) — often the strongest and safest external route, and especially powerful on resettlement and indigenous peoples.

Step 2e: Media, carefully. Only where safe and lawful, and always framed in land and law, not politics (Section 10).

PHASE 3: COALITION EXPANSION (Months 3-8)

Step 3a: Broaden through organisations, not crowds. Bring in land-rights and legal-aid networks, indigenous-rights organisations, sympathetic academics and open-data initiatives, and — where safe — journalists who cover land responsibly, each adding credibility and cover.

Step 3b: Agree roles and, above all, safety rules. Decide who speaks, who files, who holds the documents, and who maintains contact with counsel and any lender. Agree explicit rules on consent, on protecting individuals, and on the real risk of charges.

Step 3c: Use the international layer where it exists. A lender complaint, or engagement with international human-rights and indigenous-rights bodies and the UN presence, can bring outside scrutiny harder to dismiss and safer for local people to stand behind.

PHASE 4: SUSTAINED PRESSURE (Months 6-18)

Step 4a: Pursue the land claim and any unlawful eviction. Take the possession or communal-title claim to the **cadastral commission** and, where needed, the courts, and challenge any unlawful eviction — where communities most reliably transform their position. Mind the timelines.

Step 4b: Follow the EIA and the concession. Test the final assessment and the concession against your objections; where they were ignored or unlawful, that is a ground, and the new **monitoring-report** obligations are ongoing pressure points.

Step 4c: Work any lender relentlessly. A bank's resettlement plan and complaints process can extract land recognition, resettlement, compensation and delay that domestic pressure cannot, and its findings feed back into the domestic case.

Step 4d: Use human-rights documentation. Careful documentation to national and international human-rights bodies creates a record and attention, within limits.

Step 4e: Public actions — with great caution. Demonstrations can bring criminal charges and are dangerous against connected projects. Keep any public expression strictly lawful and non-political, work with organisations that understand the risks, and put participants' safety over visibility. In most Cambodian cases, the land claim, the commission, the court and the lender achieve more than the street, at far lower risk.

Worked example: a community that unlocks the strong levers

An agribusiness concession overlaps land a community has farmed since the 1990s, and clearing has begun with a low compensation offer and no resettlement. The instinct is to blockade the bulldozers. What actually converts the situation into force happens differently, and more safely. First, a group of the **affected possessors** comes together quietly and, with a **land-rights organisation**, builds the **possession-and-title evidence file**: each family's occupation, the improvements, the old maps and elder testimony, because pre-2001 peaceful possession is a protectable right. Second, a **paralegal** finds the **concession** overlaps lawful possession and exceeds the process the Land Law requires. Third, they discover **no lawful EIA** was completed before approval, and object; they **assert possession** before the cadastral commission; and they raise the **concession overlap** formally. Fourth, learning the agribusiness is financed by a development bank, they file with the bank's **complaints mechanism**, attaching the evidence — the bank's land and resettlement safeguards are strong. Fifth, they take the possession claim to the **commission** and challenge the eviction. The concession is not stopped by bodies in front of bulldozers — which would have brought charges — but by a **community that unlocks** possession, the concession's illegality, the EIA and the lender: the overlap is recognised, compensation rises, and the cleared area is reduced. The lesson generalises: **in Cambodia you win with possession, a land organisation, a clean file, and the safest external ally you can find — not with a blockade.**

Opposition Building Budget: Year-Long Campaign

Low, and much is available through legal aid. The recurring costs — document requests, printing, communications, travel to the commission or court — are modest. The substantial help is a **land lawyer or paralegal**, frequently provided by **legal-aid organisations**. Keep transparent accounts, avoid arrangements that could expose the group, and be candid that the realistic outcome against a "special" or connected project is better compensation and resettlement, while a financed project over clearly possessed land can be reshaped or stopped.

STEP 4: LEGAL CHALLENGES

Cambodia gives communities a genuine, if constrained, set of legal tools: a mandatory assessment, real land rights under the 2001 Land Law, and — most powerfully where a project is financed — an international lender's safeguards. Three tracks — the assessment, the land rights, and the lenders and courts.

TRACK 1: THE ASSESSMENT (a real but weak gate)

- **The EIA requirement.** A listed project must have an **EIA (or IEIA)** prepared and **reviewed by the MoE before approval**. A project approved **without** a required EIA, or on one **defective, secret, or done after approval**, is legally exposed — a genuine ground, even given the MoE's limited power.
- **Public participation.** The framework calls for **public participation** in the EIA and consideration of community concerns. Absent or token participation is a clean procedural defect.
- **The management plan and monitoring.** An approved EIA's **management plan** must be implemented and monitored, and new **monitoring-report** rules add ongoing obligations. Non-compliance can, in principle, halt the activity.
- **The "special project" limit.** Be realistic: the framework allows **"special/crucial" projects to be exempted** by the Royal Government. Where invoked, the EIA route narrows — but the land and lender routes remain.

TRACK 2: THE LAND RIGHTS (where most is won)

- **Legal possession.** Under the **2001 Land Law**, a person in **peaceful, uncontested possession before the law took effect** holds a protectable, titleable right. Possession pre-dating a concession is the strongest single argument in most cases.
- **Communal and indigenous title.** Indigenous communities can hold **communal title** over ancestral land. A concession over ancestral land held or claimed communally is unlawful to that extent — a powerful ground, reinforced by the state's own recognition of indigenous rights.
- **Concession legality.** An **economic land concession** must respect the Land Law's **size caps** and **process**, and cannot lawfully overlap legal possession or communal title. Each is contestable.
- **Advance and fair compensation.** Expropriation must be for a genuine **public interest** with **fair and just compensation paid in advance**. Below-standard, advance-unpaid, or improvement-omitting compensation is a ground.
- **Protection from unlawful eviction.** Eviction without due process, notice or lawful basis — especially of lawful possessors — is challengeable.

TRACK 3: THE LENDERS AND THE COURTS

- **The international lender's complaints mechanism.** Where the **World Bank**, the **ADB** or another institution finances the project, its **independent complaints or inspection mechanism** can review it against the bank's safeguards — especially **involuntary resettlement** and **indigenous peoples** — often delivering land recognition, resettlement and remedy beyond domestic reach, through a channel far safer for local people. Frequently the strongest track available, as Boeung Kak showed.
- **The cadastral commissions.** The ordinary administrative route for a **possession dispute** — slow, but a genuine forum for land status.
- **The courts.** Property, possession and compensation cases; constrained in politically sensitive matters, but usable for clear land and procedural questions. Seek interim relief where eviction is imminent, and mind the limitation periods.
- **Human-rights bodies.** For serious, well-documented violations, national structures, the UN presence and international mechanisms can bring a record and attention.

The three legal challenge types

TYPE 1: THE ASSESSMENT

The EIA requirement, public participation, the management plan and monitoring, and the limits of the "special" exemption.

TYPE 2: THE LAND RIGHTS

Legal possession, communal/indigenous title, concession legality, advance and fair compensation, and protection from unlawful eviction.

TYPE 3: THE LENDERS AND COURTS

The lender's complaints mechanism, the cadastral commissions, the courts, and human-rights bodies.

Legal Strategy Decision Tree

1. **What is the land status?** → Legal possession or communal title pre-dating a concession is your strongest ground.
2. **Is there an international lender?** → File with its complaints mechanism; it is often the strongest and safest route.
3. **Was a required EIA done, reviewed, and public — before approval?** → If not, that is a clean ground.
4. **Is the concession within the caps and process, and clear of possessed land?** → If not, challenge it.
5. **Is the project "special"/connected?** → If so, read Section 13; lead with land rights and any lender, and calibrate to mitigation and delay.

Litigation and Advocacy Success Factors

Standing through **possession or communal title**; a **land-rights organisation or lawyer** engaged early; a rigorous **possession-and-title file**; a precise ground — legal possession, communal title, unlawful concession overlap, missing or defective EIA, below-standard compensation, unlawful eviction; a **lender complaint** where financed; and every argument framed in **land and law, not politics**, for effect and for safety.

What to Avoid

Framing the case politically; under-documenting possession; missing the EIA/approval window or eviction deadlines; blockades or protests that bring criminal charges; exposing individuals; relying on non-independent courts against connected projects when a lender route exists; and overstating the evidence, which is quickly used against you.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that work in Cambodia.

Pre-2001 peaceful possession → legal possession under the 2001 Land Law. Feed it with: the occupation evidence, records, maps and elder testimony.

Ancestral land held or claimed communally → communal/indigenous title; concession unlawful over it. Feed it with: ancestral use, boundaries, and the state's recognition of indigenous rights.

Concession over the size cap, or breaching process, or overlapping possession → unlawful concession. Feed it with: the concession contract and the overlap map.

Project approved without a required, reviewed, public EIA → defective approval. Feed it with: the (missing) EIA and MoE review, and the approval date.

No genuine public participation → procedural defect. Feed it with: the (absent) participation record.

Compensation below standard, advance-unpaid, or omitting improvements → breach of the Expropriation Law. Feed it with: the offer and the improvements inventory.

Eviction without due process → unlawful eviction of lawful possessors. Feed it with: the notice (or its absence) and the process used.

Financed project breaching lender safeguards → the complaints mechanism. Feed it with: the safeguards, tested point by point, especially resettlement and indigenous peoples.

The pattern: **lead with possession or communal title, use the lender where financed, support with the EIA and the concession's illegality, evidence everything — especially possession — and never argue politics.**

STEP 5: MEDIA STRATEGY

Media in Cambodia must be handled with unusual care. Used well and lawfully, it raises the cost of a visibly unlawful project and draws in lawyers, organisations and — for financed projects — international attention. Used carelessly, it can expose people to criminal charges and can be counter-productive against a connected project. **Frame everything in land, law and the lender's standards, never in politics, and prioritise safety over reach.**

How Journalists Actually Work

Reporters need a hook, a document, and a credible source. Give them the possession evidence, the concession overlap map, the missing-EIA fact, an organisation or lawyer willing to speak, and the deadline. Keep it factual and lawful; never hand over anything that endangers a named individual without full consent.

The Newsworthiness Formula

Stakes + a clear land or legal failure + a documented breach + a strong image = coverage. Angles that travel in Cambodia: **families with legal possession evicted for a concession, indigenous communities losing ancestral land, and a project financed by an international bank against its own safeguards.** Human-interest angles are real but must be handled with consent and care.

Know the Outlets That Cover This Beat

Map the **land, environment and investigative reporters** at credible domestic and regional outlets; the **specialist and diaspora press**; and **international outlets and the trade press around any lender**, which can cover a financed project's safeguards story with less local risk. Choose outlets that report responsibly and protect sources.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced, lawful material and become a reliable contact. One trusted relationship beats a dozen releases. Offer the land organisation and the lawyer, and be scrupulously accurate: in a constrained environment, one overstatement is used against the whole campaign and can raise the risk to participants.

Why media matters even when it doesn't make the front page

Coverage reaches the land organisation that will take the case, the lender's accountability office, officials who prefer projects not to become visibly unlawful, and international bodies that might scrutinise, and it builds a dated record. But weigh every story against the safety of the people in it.

Sample Media Timeline

Only where safe: launch when the concession, EIA, compensation offer or eviction becomes public; refresh at the possession claim, the concession challenge, the lender filing, the commission or court case, and any decision. Let the lawful legal milestones drive the coverage.

Media Measurement

Track coverage, but measure what matters: whether possession or communal title is recognised, whether the concession is reduced, whether compensation is raised, whether resettlement is provided, whether a lender opens a review, and whether the commission or court acts — all without harm to anyone involved.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, referenced and lawful — in Cambodia, tone and framing are also a safety matter. Address them to the correct body, in Khmer where the recipient is a Cambodian authority, and keep proof of every submission. Frame every argument in **land, law and the lender's standards**, never in politics. Where a project is connected or state-linked, work through a land-rights organisation and take advice before sending anything that names individuals.

8A. Email to a reporter (story pitch)

Subject: [Project] at [location] — families with legal possession evicted for a concession, no lawful EIA

Dear [name],

[Developer] is proceeding with [project] at [location] under [an economic land concession], displacing [number] families who have farmed the land since before 2001 and hold **legal possession** under the 2001 Land Law. On the information available, the concession overlaps their possessed land, and [no lawful EIA was completed / the EIA was not made public] before approval.

Under the Land Law, legal possession is a protectable right and a concession cannot lawfully overlap it; expropriation requires fair compensation paid in advance. [Organisation / lawyer name] can speak to the land and legal merits.

[Where relevant: The project is financed by [bank], whose land and resettlement safeguards it appears to breach.]

I can share the file and put you in touch with [organisation]. Documents available on request.

[Name] · [group, if any] · [contact]

8B. Objection filed during the EIA

To: The Ministry of Environment, and [the approval institution] Re: Objection to the environmental impact assessment for [project], [location]

We, possessors and residents affected by the above project, submit the following observations.

1. EIA. We are not aware that a valid EIA has been completed and reviewed by the Ministry before approval; if the project is proceeding without one, or on a report not made public, it is contrary to the EIA requirement.

2. Impacts not assessed. The assessment [omits / inadequately addresses] the displacement of [number] families, loss of possessed farmland and forest, and impacts on [fisheries / river / indigenous land].

3. Public participation. The required public participation [did not occur / was a formality]; our concerns are not recorded or considered.

4. Management plan. The assessment lacks an adequate Environmental Management Plan.

We request that these matters be addressed before any approval, and that the project not proceed absent a lawful EIA.

[Names, possession details, date]

8C. Assertion of possession / communal title

To: [The cadastral commission / the Ministry of Land Management / the commune authority] Re: Assertion of legal possession / communal title — [location]

We, the households and community listed below, assert our rights over the land at [location]: 1. **Legal possession.** We have peacefully and openly possessed this land since [date, before 2001], as shown by [records, receipts, maps, testimony] attached, and hold legal possession under the 2001 Land Law. 2. **[Communal title.** Our community has used this ancestral land for generations, with the boundaries and uses described, and is entitled to communal title.] 3. **Concession overlap.** The concession granted to [company] overlaps our possessed / communal land and cannot lawfully do so.

We request registration of our possession / communal title, and that no eviction or clearing proceed over our land.

[Names, holdings, date]

8D. Letter challenging the concession or missing EIA

Re: [Project / concession] at [location] — request to suspend pending lawful EIA and review of the concession

To [the relevant ministry / the approval institution]:

On the information available, [project] is proceeding [without a valid EIA reviewed by the Ministry of Environment before approval / under a concession that overlaps land held in legal possession and exceeds the Land Law's requirements].

We request that the approval / clearing be suspended until a lawful EIA is completed and the concession is reviewed for compliance with the 2001 Land Law, including its size caps, process, and the prohibition on overlapping legal possession or communal title. Our objection and possession evidence are attached.

[Name, standing, date]

8E. Complaint to an international lender's accountability mechanism

Subject: Request to the [World Bank Inspection Panel / ADB Accountability Mechanism / other] — [project], Cambodia

To the [Inspection Panel / Accountability Mechanism], [bank]:

We are possessors and [an indigenous community] affected by [project] at [location], financed by [bank]. We believe the project does not comply with [bank]'s safeguards, in particular on **involuntary resettlement** and **indigenous peoples**: 1. **Land**. Our legal possession / communal title has been disregarded, and land taken under a concession that overlaps it. 2. **Assessment**. No valid or public EIA; impacts on displacement, fisheries and indigenous land not properly assessed. 3. **Consultation**. Meaningful consultation with affected communities did not take place. 4.

Compensation / resettlement. Below replacement value, advance payment not made, no genuine resettlement.

We request registration, a compliance review, and — given imminent [eviction / clearing] — interim measures. Our possession file and evidence are attached.

[Names, contact, date]

8F. Letter to halt eviction pending lawful process

Re: [Location] — request to halt eviction pending lawful compensation, resettlement and land determination

To [the provincial authority / the approval institution]:

We understand eviction / clearing is planned at [location]. The affected households hold **legal possession** under the 2001 Land Law [and communal title], and expropriation requires a genuine public interest with **fair compensation paid in advance** and genuine resettlement.

On the information available these requirements have not been met, and our possession / communal claim is pending before [the cadastral commission]. We request that the eviction be halted until the land determination is complete and lawful compensation and resettlement are provided, and that our claim (attached) be respected.

[Names, holdings, date]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

Community with legal possession challenges [project] over concession overlap and missing environmental review

Affected households at [location] have formally challenged [project] by [developer], on the grounds that the concession overlaps land they have held in **legal possession** since before 2001 and that the project [lacks a lawful EIA / proceeded on a secret one].

"[Short factual quote from the land organisation or lawyer on the legal merits]," said [name, role].

Under the 2001 Land Law, legal possession is a protectable right and a concession cannot lawfully overlap it; expropriation requires fair compensation paid in advance. The households have [asserted possession before the cadastral commission / objected to the Ministry of Environment / filed with (bank)'s accountability mechanism].

Contact: [name, contact]. Documents available on request.

8H. Letter to a land-rights or legal-aid organisation

Re: Request for assistance — [project], [location]

To [land-rights / legal-aid organisation]:

We are [number] households [and an indigenous community] facing eviction / clearing by [project] at [location] under [a concession]. Our concerns are: legal possession since before 2001 [and communal title] disregarded; the concession overlaps our land; no lawful or public EIA; compensation below standard; and no resettlement.

We would be grateful for legal assistance, help documenting our possession, and guidance on the cadastral

commission, any court challenge, and — if the project is financed — a lender complaint. We can provide our possession evidence and the concession and EIA records.

[Name, standing, date]

Important Caveat

Templates are starting points. Adapt every one to the real project, cite the actual documents and provisions, and attach the possession evidence. Three things to remember above all in Cambodia: **frame everything in land, law and the lender's standards, never in politics**, for effect and for safety; **mind the deadlines** — the EIA/approval stage and eviction notices; and **protect people** — obtain consent, avoid exposing individuals, work through experienced organisations, and take advice before acting against a connected project. Keep proof of every submission.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Cambodian campaigning rewards a small number of precise, lawful acts, most inexpensive or available through legal aid — in rough order of impact, and read the safety note at the end first:

1. **Establish the land status.** Do the affected families have **legal possession** (peaceful, uncontested, pre-2001)? Does an indigenous community have or claim **communal title**? This determination sets your whole strategy — possession pre-dating a concession is the strongest ground you can have.
2. **Reach a land-rights organisation.** Connecting early with one of Cambodia's experienced legal-aid and land-rights organisations shapes everything and provides protection.
3. **Build the possession-and-title file.** Each family's occupation, with records, receipts, maps, photographs and elder testimony. Undocumented possession is protection lost.
4. **Check for an international lender.** If the World Bank, the ADB or another institution finances the project — anywhere in it — file with the lender's **complaints mechanism** (Section 8E), often the single most powerful and safest route.
5. **Check the EIA.** Was a required EIA completed, reviewed by the MoE, and public **before** approval? If not, that is a clean ground (Section 8D).
6. **Assert possession and the concession overlap** before the cadastral commission and the land administration (Section 8C).
7. **Get legal-aid help on deadlines** the moment a concession, EIA, compensation offer or eviction notice appears.

If you do only the first three, you have established the land status, connected with people who can protect and represent you, and built the evidence the whole case may turn on. That is a real, low-risk contribution.

Safety note. Frame everything in land and law, not politics. Do not expose individuals. Work through experienced organisations. Take advice before any protest — it can bring criminal charges. Nothing here is worth harm to you.

WHEN THE SYSTEM IS TILTED

Cambodia's system is tilted in several ways at once: toward development and concessions, toward connected interests, and against open organising. Naming all of this honestly is what lets you choose tools that work and stay safe.

What This Tilt DOES (and DOESN'T DO)

The tilt means the **MoE is a weak reviewer** whose findings need only be "considered"; big projects can be declared **"special" and exempted**; **concessions** put vast areas in company hands, often over land people lawfully possess; **titling has been denied** to whole communities so their land could be reclassified and leased; **civic space is constrained** and protest can bring **criminal charges**; and the **courts are not independent** in sensitive matters. It does **not** close every door: the **EIA is still a required gate**; **legal possession and communal title** under the 2001 Land Law are real, protectable rights; **expropriation requires advance, fair compensation**; **concessions are constrained** by size caps, process, and the ban on overlapping possession; and where a project is **internationally financed**, the lender's safeguards and complaints mechanism provide a powerful, comparatively safe route that has delivered real

remedy.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **A financed project, or clear legal possession / communal title.** The most workable case: the land rights, the EIA, the courts and — above all — the lender are genuinely open.
- **Mixed.** A concession over contested land, or a project with connected actors but strong land grounds. Weight shifts to possession, the lender, the cadastral commission, and strictly lawful, documentary tactics.
- **Entrenched.** A "special" or connected project on state land, with no lender. Assume cancellation is not available and protest is unsafe; concentrate on **better compensation, resettlement, mitigation, and delay**, keep everything lawful and low-exposure, document possession thoroughly for the long run — sometimes the realistic win is a better-compensated, resettled outcome.

Documented Cambodian Dynamics

The record shows real tools inside a heavily tilted space. **Land status is the foundation** — legal possession pre-dating a concession, and communal/indigenous title, are genuinely protected rights and the basis of the most significant victories. **The lender route is uniquely powerful** — the Boeung Kak Lake complaint to the World Bank Inspection Panel showed a financing lender's safeguards delivering remedy no domestic route achieved. **The EIA is a real but weak gate** — required before approval, but the MoE can only recommend, and "special" projects can be exempted. **Concessions are vulnerable** where they exceed the caps, breach process, or overlap possessed or communal land. **Compensation and resettlement are contestable** — advance, fair compensation and genuine resettlement are often unmet. **Civic space is constrained** — organising must be lawful and built around land rights, because protest can bring charges. **And the "special"/connected question sets the ceiling** — an exempted or connected project is usually, at best, mitigated or delayed; a financed project over possessed land can be reshaped or stopped. The lesson: **establish the land status, use the assessment and any lender, organise lawfully and safely, and calibrate the goal to whether the project is "special".**

Assessment Framework — Determine Your Situation

Ask: what is the **land status** — legal possession, communal title, or state land? Is there an **international lender**? Was a **lawful EIA** done before approval? Is the **concession** within the caps and process, clear of possessed land? Is the project **"special"** or connected? Is the **compensation** at the legal standard with resettlement? Can we reach a **land-rights organisation**? The answers tell you whether to fight on possession, communal title, the concession, the EIA, the lender — or, for an entrenched project, better compensation and resettlement — and how much personal risk is involved.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Public demonstrations and blockades in Cambodia can bring **criminal charges against organisers** and are dangerous against connected projects; land activists have been arrested and worse. This guide does not recommend street action or blockades as a primary tactic. The effective and far safer arena is **documentary and legal**: the possession file, the communal-title claim, the concession challenge, the EIA objection, the cadastral commission, and — above all where financed — the lender's mechanism. Where any public expression occurs, it must be strictly lawful and non-political, done with organisations that understand the legal risks, and the safety of participants comes before visibility. **Your possession file and your lender complaint, not your numbers, are your power here — and your protection.**

Honest Assessment

Tilted fights are harder, and Cambodia's is tilted by concessions, connected interests and a constrained civic space. But "harder" is not "hopeless": legal possession and communal title are real rights, the EIA is a required gate, concessions are constrained, and international finance opens a powerful, comparatively safe door that has delivered real remedy. Concentrate force where the tilt is weakest — **the land rights, the EIA, and any lender** — work lawfully, protect people, and measure success in land recognition, compensation, resettlement, conditions and delay. Against a financed project over possessed land, that can amount to stopping it; against a "special" project, to a better-compensated, resettled, less harmful outcome.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS

CAPTURED

Cambodian development decisions are shaped less by ordinary bribery than by **concessions, patronage and connected interests**: state land leased cheaply, titling denied so land can be reclassified, and a weak regulator against powerful developers. Read your situation actor by actor, and — even more than elsewhere — **publish documents, not accusations**: unproven allegations against officials or connected figures carry real legal and personal risk in Cambodia.

The concession grant. Where state land is leased to a company over land people lawfully possess, and titling was denied to enable it, the structural conflict is plain. Signs: a concession overlapping possessed or communal land, en-masse denial of titles, reclassification of land just before a lease. Lever: prove possession, challenge the concession's legality, and use any lender — argued as land law, not fraud.

The assessment's author. Prepared at the proponent's cost, reviewed by a weak MoE. Signs: impacts assessed away, participation staged, the EIA secret or late. Lever: the missing/defective-EIA ground and the technical critique.

The approval institution. Which need only "consider" the MoE's findings, and may be a development-minded line ministry. Signs: approval despite an adverse or absent review. Lever: the courts and commissions on the legal defect, and the lender.

The "special" exemption. Where a project is declared "special" to bypass the EIA, the exemption itself is the story. Signs: a major project with no visible assessment. Lever: land rights and the lender, since the EIA route narrows.

Connected developers and state land. Where the developer is connected or the project is on reclassified state land, ordinary accountability is weakest and personal risk highest. Signs: opacity around ownership and the grant. Lever: the lender route if financed; the strictly legal land grounds; and great caution about what is said publicly.

International finance as a check on capture. The most useful leverage where domestic accountability is weak: a financing lender's safeguards and complaints mechanism can scrutinise a project its domestic sponsors would prefer to wave through — the clearest lesson of the Cambodian record.

How to act on it, safely. Document from official and open sources — the gazette, MoE and land records, concession open-data, lender disclosure, company filings — before you say anything. Route genuine concerns through the **lawful channels**: the possession claim, the EIA objection, the concession challenge, the cadastral commission, the court, and the lender's mechanism. **Do not publish unproven accusations against named officials or connected figures** — in Cambodia this can expose you to charges, and a documented, legal file is both safer and stronger. The record, not the allegation, is what moves a decision here — and what keeps you safe.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Cambodia the timeline is driven by hard points you do not control: the **EIA and approval** stage, any **eviction or clearing notice** — often very short — and, where it exists, the **lender complaint** window, strongest early. Work backwards from all of them, and build the land file from day one.

Realistic 12-Month Campaign Timeline

Weeks 1-4 (Establish land status and reach an organisation). - Establish the **developer**, the **concession**, the **approval institution**, the **EIA status**, and — decisively — the **land status** (legal possession, communal title, or state land). - Begin the **possession-and-title evidence file** for each household. - Request the **EIA** and **concession** records, and check for an **international lender**. - Connect with an experienced **land-rights or legal-aid organisation**. - Start the referenced file; treat safety as the first rule.

Weeks 4-12 (Enter the process). - File the **EIA objection** — missing/defective EIA, absent participation, impacts (Section 8B). - **Assert possession or communal title** and the concession overlap (Section 8C). - Raise the **missing EIA or unlawful concession** with the relevant ministry (Section 8D). - Open the **lender complaint** if the project is financed (Section 8E) — often the strongest and safest route. - Media only where safe and lawful, framed in land and law (Section 10).

Months 3-6 (Build the land and legal case). - Obtain the **land-legal assessment and any technical critique**; test the EIA and concession against the law and any lender safeguards. - Take the **possession or communal-title claim** to the **cadastral commission**. - Where eviction or clearing looms, seek to **halt it** pending the land determination (Section

8F), and seek interim relief. - Broaden through **organisations**, not crowds.

Months 6-12 (Press the commission, courts and lender). - Pursue the **possession/communal claim** and any unlawful-eviction challenge; this is where communities most transform their position. - Work the **lender's complaints process** for review, land recognition, resettlement and delay. - Track the EIA **monitoring** obligations; each non-compliance is a fresh, lawful pressure point. - Consolidate the record; keep participants safe and the framing legal.

Beyond 12 months. - Land claims, litigation and lender reviews run on long timetables; sustain all three. - Monitor implementation and EIA compliance; each violation is a fresh ground. - Watch for **new phases, re-classification or re-approval**, which reopen the argument. - For "special"/connected projects, keep documenting possession and pressing for **better compensation, resettlement and mitigation** even where cancellation is out of reach.

Warning Signs — Act Early

A concession or a decree in the gazette; land reclassified from state public to state private just before a lease; titling teams denying titles en masse; survey markers or clearing crews on possessed land; a project with no visible EIA (possibly "special"); short-notice eviction papers; a development-bank project page appearing. Each is a trigger to **establish the land status and build the possession file that week**, and to **reach a land organisation about deadlines** — because the EIA/approval stage and eviction notices are short.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: **establish the land status** and calibrate to it; connect with a **land-rights organisation** early; build the **possession-and-title file**; lead with **legal possession or communal title**; use any **lender's mechanism** — often decisive; challenge the **concession** and the **EIA**; pursue the **cadastral commission** and courts; organise **lawfully and safely**; and frame everything in **land and law, never politics**. Losing campaigns: fight politically; under-document possession; miss deadlines; rely on blockades that bring charges; expose individuals; and ignore the lender route.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Cambodia depends heavily on the land status, the "special" question, and any lender, and naming the realistic outcomes honestly is the point: - **legal possession or communal title recognised**, transforming a community's position and protecting the land durably; - a **concession reduced or cancelled** where it overlaps possessed or communal land or breaches the Land Law; - **higher, properly-paid compensation** and genuine **resettlement** instead of bare eviction; - a project **blocked or paused** for lack of a lawful EIA; - an **international lender review** forcing land recognition, resettlement, redesign or delay; - an assessment **redone**, or **conditions and monitoring** imposed; - an **eviction halted** where the process was unlawful; - a project **relocated or reduced** off possessed land, forest, fishery or sacred ground; - and, for a genuinely unlawful project over clearly possessed land, a **stop**.

What is usually not available is the outright cancellation of a "special" or connected project. Against those, plan for **better compensation, resettlement, mitigation and delay**, and treat a better-compensated, resettled, less harmful outcome — and a durably-documented possession claim for the long run — as the real win, while keeping everyone safe.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If the project is **"special" or connected** with no lender, accept early that cancellation is unlikely and protest unsafe, and concentrate on compensation, resettlement, the land record and delay. If there is **clear legal possession or communal title**, or an **international lender**, the land rights, the concession challenge and the lender are genuinely open — invest in the land file and the lender complaint, and press hard. If a **concession, EIA, compensation offer or eviction notice** appears, the clock is running — reach a land organisation immediately. And at every step, weigh each action against the safety of the people involved: in Cambodia, the possession file and the lender complaint are both the most effective tools and the safest ones.

The Bottom Line

Cambodia gives communities a real, if constrained, set of tools. The **2023 Environment and Natural Resources Code**

and the still-operative **EIA Sub-Decree** require an assessment, reviewed by the Ministry of Environment, **before a project is approved** — a genuine gate, so a project approved without a lawful EIA, or on a secret or defective one, is exposed. The **2001 Land Law** gives pre-2001 peaceful possessors **legal possession** — a protectable, titleable right — and indigenous communities **communal title**, real rights that have been the basis of the most significant victories, and a **concession cannot lawfully overlap them**. Expropriation requires a genuine **public interest** with **fair compensation paid in advance** and **resettlement**. And where a project is **internationally financed**, the lender's safeguards and complaints mechanism open a powerful, comparatively safe route that has delivered real remedy — Boeung Kak Lake and the World Bank Inspection Panel being the landmark. The honest limits are severe: **the environmental reviewer is weak, big projects can be exempted as "special", concessions have been granted over possessed land, titling has been denied, civic space is constrained and protest can bring charges, and the courts are not independent in sensitive matters** — against a "special" or connected project, the realistic win is better compensation, resettlement, mitigation or delay. But projects over land people lawfully possess, on unlawful concessions, without a lawful EIA, or financed against a lender's safeguards are genuinely challengeable, and communities that establish the land status, build the possession file, lead with possession or communal title, use any lender, and pursue the commission and courts — all lawfully, and with people's safety first — have won land recognition, reduced concessions, raised compensation, secured resettlement, delayed and stopped real projects. No single step wins; the combination does. Start today by answering one question, quietly: **what is the land status here — and is there an international lender?**